

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1454

By: Shaw

AS INTRODUCED

An Act relating to money wire transmission; amending 63 O.S. 2021, Section 2-503.1j, which relates to fees; modifying fee amount; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 63 O.S. 2021, Section 2-503.1j, is amended to read as follows:

Section 2-503.1j. A. Any licensee of a money transmission, transmitter or wire transmitter business pursuant to the Oklahoma Financial Transaction Reporting Act and their delegates shall collect a fee of ~~Five Dollars (\$5.00)~~ Ten Dollars (\$10.00) for each transaction not in excess of Five Hundred Dollars (\$500.00) and in addition to such fee an amount equal to ~~one percent (1%)~~ two percent (2%) of the amount in excess of Five Hundred Dollars (\$500.00).

B. The fee prescribed by subsection A of this section shall be remitted quarterly to the Oklahoma Tax Commission on such forms as the Commission, with the assistance of the Oklahoma State Bureau of

1 Narcotics and Dangerous Drugs Control, may prescribe for such
2 purpose. All required forms and remittances shall be filed with the
3 Tax Commission not later than the fifteenth day of the month
4 following the close of each calendar quarter.

5 C. The Oklahoma Tax Commission shall apportion all revenues
6 derived from the fee to the Drug Money Laundering and Wire
7 Transmitter Revolving Fund.

8 D. Every licensee and their delegates shall post a notice on a
9 form prescribed by the Director of the Oklahoma State Bureau of
10 Narcotics and Dangerous Drugs Control that notifies customers that
11 upon filing an individual income tax return with either a valid
12 ~~social security~~ Social Security number or a valid taxpayer
13 identification number the customer shall be entitled to an income
14 tax credit equal to the amount of the fee paid by the customer for
15 the transaction.

16 E. The Oklahoma Tax Commission shall be afforded all provisions
17 currently under law to enforce the provisions of subsection B of
18 this section. If a licensee fails to file reports or fails to remit
19 the fee authorized by subsection B of this section, the Oklahoma Tax
20 Commission shall have the authority pursuant to Section 212 of Title
21 68 of the Oklahoma Statutes to suspend the license of the licensee
22 and its delegates. A notification of the suspension shall also be
23 sent to the State Banking Commissioner and the Director of the
24 Oklahoma State Bureau of Narcotics and Dangerous Drugs Control. The

1 licensee and its delegates may not reapply for a license until all
2 required reports have been filed and all required fee amounts have
3 been remitted.

4 F. Upon request from the Oklahoma Tax Commission, the State
5 Banking Commissioner may make a claim against the surety bond of the
6 licensee on behalf of the State of Oklahoma.

7 G. The Oklahoma State Bureau of Narcotics and Dangerous Drugs
8 Control and its attorneys may assist the Oklahoma Tax Commission in
9 conducting audits and the prosecution and/or seeking of legal
10 remedies to ensure compliance with this act.

11 SECTION 2. This act shall become effective November 1, 2025.

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